



THE OFFICIAL GAZETTE
OF THE COLONY AND PROTECTORATE OF KENYA

Published under the Authority of His Excellency the Governor of the Colony and Protectorate of Kenya

Vol. LVII—No. 55

NAIROBI, 11th October, 1955

Price 50 Cents

Government Notice Nos. 1377–1381—	PAGE
Bills for introduction into the Legislative Council—	
The Trade Marks Ordinance, 1955... ..	1001
The Seeds Ordinance, 1955	1038
The Price Control Ordinance, 1955	1049
The Penal Code (Amendment) Ordinance, 1955	1068
The Customs Tariff (Amendment) (No. 2) Ordinance, 1955	1072

GOVERNMENT NOTICE No. 1377

The Governor in Council has approved of the introduction of the following Bill into Legislative Council.

A. W. PURVIS,
Clerk of the Legislative Council.

ARRANGEMENT OF SECTIONS

SECTION

PART I—PRELIMINARY

- 1—Short title and commencement.
- 2—Interpretation.
- 3—Appointment of Registrar of Trade Marks and other officers.

PART II—REGISTRATION, INFRINGEMENT AND OTHER SUBSTANTIVE PROVISIONS

The register

- 4—The register of trade marks.

Effect of Registration and the Action for Infringement

- 5—No action for infringement of unregistered trade mark.
- 6—Registration to be in respect of particular goods.
- 7—Right given by registration in Part A, and infringement thereof.
- 8—Right given by registration in Part B, and infringement thereof.
- 9—Infringement by breach of certain restrictions.
- 10—Saving for vested rights.
- 11—Saving for use of name, address or description of goods.

Registrability and Validity of Registration

- 12—Distinctiveness requisite for registration in Part A.
- 13—Capability of distinguishing requisite for recognition in Part B.
- 14—Prohibition of registration of deceptive, etc., matter.
- 15—Prohibition of registration of identical and resembling trade marks.
- 16—Registration in Part A to be conclusive as to validity after seven years.
- 17—Registration subject to disclaimer.
- 18—Words used as name or description of an article or substance.
- 19—Effect of limitation as to colour, and of absence thereof.

PART III—PROCEDURE FOR, AND DURATION OF, REGISTRATION

- 20—Application for registration.
- 21—Opposition to registration.
- 22—Registration.
- 23—Duration and renewal of registration.
- 24—Registration of parts of trade marks and of trade marks as a series.

PART IV—ASSIGNMENT AND TRANSMISSION

- 25—Powers of, and restrictions on, assignment and transmission.
- 26—Certain trade marks to be associated so as to be assignable and transmissible as a whole only.
- 27—Power of registered proprietor to assign and give receipts.
- 28—Registration of assignments and transmissions.

PART V—USE AND NON-USE

- 29—Removal from register and imposition of limitations on ground of non-use.
- 30—Defensive registration of well-known trade marks.
- 31—Registered users.
- 32—Proposed use of trade mark by corporation to be constituted, etc.
- 33—Use of one of associated or substantially identical trade marks equivalent to use of another.
- 34—Use of trade mark for export trade.

SECTION

PART VI—RECTIFICATION AND CORRECTION OF THE REGISTER

- 35—General power to rectify entries in register.
- 36—Power to expunge or vary registration for breach of condition.
- 37—Correction of register.
- 38—Alteration of registered trade mark.
- 39—Adaptation of entries in register to amended or substituted classification of goods.

PART VII—CERTIFICATION TRADE MARKS

- 40—Certification trade marks.

PART VIII—RULES AND FEES

- 41—Power of Minister to make rules.
- 42—Fees.

PART IX—POWERS AND DUTIES OF REGISTRAR

- 43—Preliminary advice by Registrar as to distinctiveness.
- 44—Hearing before exercise of Registrar's discretion.
- 45—Power of Registrar to award costs.

PART X—LEGAL PROCEEDINGS AND APPEALS

- 46—Registration to be prima facie evidence of validity.
- 47—Certificate of validity.
- 48—Costs of Registrar in proceedings before Court, and payment of costs by Registrar.
- 49—Trade usage, etc., to be considered.
- 50—Registrar's appearance in proceedings involving rectification.
- 51—Court's power to review Registrar's decision.
- 52—Discretion of Court in appeals.
- 53—Procedure in cases of option to apply to Court or Registrar.

PART XI—EVIDENCE

- 54—Mode of giving evidence.
- 55—Evidence of entries in register.
- 56—Evidence of things done by Registrar.

PART XII—OFFENCES AND RESTRAINT OF USE OF ROYAL ARMS

- 57—Falsification of entries in register and misdemeanour.
- 58—Fine for falsely representing a trade mark as registered.
- 59—Restraint of use of Royal Arms, etc.

PART XIII—MISCELLANEOUS

- 60—Change of form of trade connexion not to be deemed to cause deception.
- 61—Jointly owned trade marks.
- 62—Trusts and equities.
- 63—Recognition of agents.
- 64—Address for service.
- 65—Transitional provisions.
- 66—Savings.
- 67—International and Commonwealth arrangements.
- 68—Provisions as to public holidays.
- 69—Repeal and savings.

FIRST SCHEDULE

Certification Trade Marks.

SECOND SCHEDULE

Specified goods under section 14 (2).

THIRD SCHEDULE

Transitional provisions.

**A BILL ENTITLED
AN ORDINANCE TO REPEAL AND REPLACE
THE TRADE MARKS ORDINANCE**

ENACTED by the Governor of the Colony of Kenya, with the advice and consent of the Legislative Council thereof, as follows:—

PART I—PRELIMINARY

Short title.
and commence-
ment.

1. This Ordinance may be cited as the Trade Marks Ordinance, 1955, and shall come into operation on such day as the Governor may, by notice in the Gazette, appoint.

Interpretation.

2. (1) In this Ordinance, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say—

“the appointed day” means the day appointed, in accordance with the provisions of section 1 of this Ordinance, for the coming into operation of this Ordinance;

“assignment” means assignment by act of the parties concerned;

“the Court” means the Supreme Court;

“limitations” means any limitations of the exclusive right to the use of a trade mark given by the registration of a person as proprietor thereof, including limitations of that right as to mode of use, as to use in relation to goods to be sold, or otherwise traded in, in any place within the Colony, or as to use in relation to goods to be exported to any market outside the Colony;

“mark” includes a device, brand, heading, label, ticket, name, signature, word, letter, numeral, or any combination thereof;

“permitted use” has the meaning assigned to it by subsection (1) of section 31 of this Ordinance;

“prescribed” means, in relation to proceedings before the Court, prescribed by rules of court, and, in other cases, prescribed by this Ordinance or the rules;

“the register” means the register of trade marks kept under this Ordinance;

“registered trade mark” means a trade mark that is actually on the register;

“registered user” means a person who is for the time being registered as such under section 31 of this Ordinance;

“the Registrar” means the Registrar of Trade Marks appointed under section 3 of this Ordinance;

“the rules” means rules made by the Minister under section 39 or section 41 of this Ordinance;

“surname” means and includes a name by which a person is customarily known by members of the community to which he belongs;

“trade mark” means, except in relation to a certification trade mark, a mark used or proposed to be used in relation to goods for the purpose of indicating, or so as to indicate, a connexion in the course of trade between the goods and some person having the right either as proprietor or as registered user to use the mark, whether with or without any indication of the identity of that person, and means, in relation to a certification trade mark, a mark registered or deemed to have been registered under section 40 of this Ordinance;

“transmission” means transmission by operation of law, devolution on the personal representative of a deceased person, and any other mode of transfer not being assignment;

“tribunal” means the Court or, subject to the provisions of section 53 of this Ordinance, the Registrar.

(2) Reference in this Ordinance to the use of a mark shall be construed as reference to the use of a printed or other visual representation of the mark, and reference therein to the use of a mark in relation to goods shall be construed as references to the use thereof upon, or in physical or other relation to, goods.

3. (1) The Registrar General, or such other person as the Governor may appoint, shall be the Registrar of Trade Marks under and for the purposes of this Ordinance.

Appointment of Registrar of Trade Marks and other officers.

10 (2) The Deputy Registrar General and every Assistant Registrar General, or such persons as the Governor may appoint, shall respectively be the Deputy Registrar of Trade Marks and Assistant Registrars of Trade Marks under and for the purposes of this Ordinance.

15 (3) The Registrar shall have a seal of such device as may be approved by the Secretary of State:

Provided that until such a seal has been obtained the seal of the Registrar General shall be used in lieu thereof.

(4) Impressions of such seal or stamp shall be judicially 20 noticed and admitted in evidence.

(5) Any act or thing directed to be done by or to the Registrar may be done by or to the Deputy Registrar of Trade Marks or any Assistant Registrar of Trade Marks.

25 PART II.—REGISTRATION, INFRINGEMENT AND OTHER SUBSTANTIVE PROVISIONS

The register

4. (1) There shall continue to be kept at the office of the Registrar of Trade Marks for the purposes of this Ordinance the record called the register of trade marks, wherein shall be 30 entered all registered trade marks with the names, addresses and descriptions of their proprietors, notifications of assignments and transmissions, the names, addresses and descriptions of all registered users, disclaimers, conditions, limitations, and such other matters relating to registered trade marks as may 35 be prescribed.

The register of trade marks.

(2) The register shall continue to be divided into two parts called respectively Part A and Part B.

(3) The register shall at all convenient times be open to the inspection of the public, subject to such regulations as may 40 be prescribed.

(4) The register shall be kept under the control and management of the Registrar of Trade Marks, who is in this Ordinance referred to as "the Registrar".

Effect of Registration and the Action for Infringement

45 5. No person shall be entitled to institute any proceeding to prevent, or to recover damages for, the infringement of an unregistered trade mark, but nothing in this Ordinance shall be deemed to affect rights of action against any person for passing off goods as the goods of another person or the 50 remedies in respect thereof.

No action for infringement of unregistered trade mark.

6. A trade mark must be registered in respect of particular goods or classes of goods and any question arising as to the class within which any goods fall shall be determined by the Registrar, whose decision shall be final.

Registration to be in respect of particular goods.

55 7. (1) Subject to the provisions of this section, and of sections 10 and 11 of this Ordinance, the registration (whether before or after the commencement of this Ordinance) of a person in Part A of the register as proprietor of a trade mark (other than a certification trade mark) in respect of any goods

Right given by registration in Part A and infringement thereof.

shall, if valid, give or be deemed to have given to that person the exclusive right to the use of the trade mark in relation to those goods and, without prejudice to the generality of the foregoing words, that right shall be deemed to be infringed by any person who, not being the proprietor of the trade mark or a registered user thereof using by way of the permitted use, uses a mark identical with it or so nearly resembling it as to be likely to deceive or cause confusion, in the course of trade, in relation to any goods in respect of which it is registered, and in such manner as to render the use of the mark likely to be taken either—

- (a) as being use as a trade mark; or
- (b) in a case in which the use is use upon the goods or in physical relation thereto or in an advertising circular or other advertisement issued to the public, as importing a reference to some person having the right either as proprietor or as registered user to use the trade mark or to goods with which such a person as aforesaid is connected in the course of trade.

(2) The right to the use of a trade mark given by registration as aforesaid shall be subject to any conditions or limitations entered on the register, and shall not be deemed to be infringed by the use of any such mark as aforesaid in any mode, in relation to goods to be sold or otherwise traded in any place, in relation to goods to be exported to any market, or in any other circumstances, to which, having regard to any such limitations, the registration does not extend.

(3) The right to the use of a trade mark given by registration as aforesaid shall not be deemed to be infringed by the use of any such mark as aforesaid by any person—

- (a) in relation to goods connected in the course of trade with the proprietor or a registered user of the trade mark if, as to those goods or a bulk of which they form part, the proprietor or the registered user conforming to the permitted use has applied the trade mark and has not subsequently removed or obliterated it, or has at any time expressly or impliedly consented to the use of the trade mark; or
- (b) in relation to goods adapted to form part of, or to be accessory to, other goods in relation to which the trade mark has been used without infringement of the right given as aforesaid or might for the time being be so used, if the use of the mark is reasonably necessary in order to indicate that the goods are so adapted and neither the purpose nor the effect of the use of the mark is to indicate otherwise than in accordance with the fact a connexion in the course of trade between any person and the goods.

(4) The use of a registered trade mark, being one of two or more registered trade marks that are identical or nearly resemble each other, in exercise of the right to the use of that trade mark given by registration as aforesaid, shall not be deemed to be an infringement of the right so given to the use of any other of those trade marks.

Right given
by registration
in Part B and
infringement
thereof.

8. (1) Except as provided by sub-section (2) of this section, the registration (whether before or after the commencement of this Ordinance) of a person in Part B of the register as proprietor of a trade mark in respect of any goods shall, if valid, give or be deemed to have given to that person the like right in relation to those goods as if the registration had been in Part A of the register, and the provisions of the last foregoing section shall have effect in like manner in

relation to a trade mark registered in Part B of the register as they have effect in relation to a trade mark registered in Part A of the register.

(2) In any action for infringement of the right to the use of a trade mark given by registration as aforesaid in Part B of the register, otherwise than by an act that is deemed to be an infringement by virtue of the next succeeding section, no injunction or other relief shall be granted to the plaintiff if the defendant establishes to the satisfaction of the court that the use of which the plaintiff complains is not likely to deceive or cause confusion or to be taken as indicating a connexion in the course of trade between the goods and some person having the right either as proprietor or as registered user to use the trade mark.

9. (1) Where, by a contract in writing made with the proprietor or a registered user of a registered trade mark, a purchaser or owner of goods enters into an obligation to the effect that he will not do, in relation to the goods, an act to which this section applies, any person who, being the owner for the time being of the goods and having notice of the obligation, does that act, or authorizes it to be done, in relation to the goods, in the course of trade or with a view to any dealing therewith in the course of trade, shall be deemed thereby to infringe the right to the use of the trade mark given by the registration thereof, unless that person became the owner of the goods by purchase for money or money's worth in good faith before receiving notice of the obligation or by virtue of a title derived through another who so became the owner thereof.

Infringement
by breach of
certain
restrictions.

(2) The acts to which this section applies are—

- (a) the application of the trade mark upon the goods after they have suffered alteration in any manner specified in the contract as respects their state or condition, get-up or packing;
- (b) in a case in which the trade mark is upon the goods, the alteration, part removal or part obliteration thereof;
- (c) in a case in which the trade mark is upon the goods, and there is also thereon other matter being matter indicating a connexion in the course of trade between the proprietor or registered user and the goods, the removal or obliteration, whether wholly or partly, of the trade mark unless that other matter is wholly removed or obliterated;
- (d) in a case in which the trade mark is upon the goods, the application of any other trade mark to the goods;
- (e) in a case in which the trade mark is upon the goods, the addition to the goods of any other matter in writing that is likely to injure the reputation of the trade mark.

(3) In this section references in relation to any goods to the proprietor, to a registered user, and to the registration, of a trade mark shall be construed, respectively, as references to the proprietor in whose name the trade mark is registered, to a registered user who is registered, and to the registration of the trade mark, in respect of those goods, and the expression "upon" includes in relation to any goods a reference to physical relation thereto.

Saving for
vested rights.

10. Nothing in this Ordinance shall entitle the proprietor or a registered user of a registered trade mark to interfere with or restrain the use by any person of a trade mark identical with or nearly resembling it in relation to goods in relation to which that person or a predecessor in title of his has continuously used that trade mark from a date anterior—

(a) to the use of the first-mentioned trade mark in relation to those goods by the proprietor or a predecessor in title of his; or

(b) to the registration of the first-mentioned trade mark in respect of those goods in the name of the proprietor or a predecessor in title of his,

whichever is the earlier, or to object (on such use being proved) to that person being put on the register for that identical or nearly resembling trade mark in respect of those goods under sub-section (2) of section 15 of this Ordinance.

Saving for
use of name,
address or
description of
goods.

11. No registration of a trade mark shall interfere with—

(a) any bona fide use by a person of his own name or of the name of his place of business, or of the name, or of the name of the place of business, of any of his predecessors in business; or

(b) the use by any person of any bona fide description of the character or quality of his goods, not being a description that would be likely to be taken as importing any such reference as is mentioned in paragraph (b) of sub-section (1) of section 7, or in paragraph (b) of sub-section (3) of section 40, of this Ordinance.

Registrability and Validity of Registration

30

Distinctiveness
requisite for
registration in
Part A.

12. (1) In order for a trade mark (other than a certification trade mark) to be registrable in Part A of the register, it must contain or consist of at least one of the following essential particulars—

(a) the name of a company, individual, or firm, represented in a special or particular manner;

(b) the signature of the applicant for registration or some predecessor in his business;

(c) an invented word or invented words;

(d) a word or words having no direct reference to the character or quality of the goods, and not being according to its ordinary signification a geographical name or a surname;

(e) any other distinctive mark; but a name, signature, or word or words, other than such as fall within the descriptions in the foregoing paragraphs (a), (b), (c) and (d), shall not be registrable under the provisions of this paragraph except upon evidence of its distinctiveness.

(2) For the purposes of this section “distinctive” means adapted, in relation to the goods in respect of which a trade mark is registered or proposed to be registered, to distinguish goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connexion subsists, either generally or, where the trade mark is registered or proposed to be registered subject to limitations, in relation to use within the extent of the registration.

(3) In determining whether a trade mark is adapted to distinguish as aforesaid the Court or the Registrar may have regard to the extent to which—

- (a) the trade mark is inherently adapted to distinguish as aforesaid; and
- (b) by reason of the use of the trade mark or of any other circumstances, the trade mark is in fact adapted to distinguish as aforesaid:

Provided always that any mark which has been registered as a distinctive mark in Part A of the register kept in the United Kingdom under the Trade Marks Act, 1938, shall be deemed to be a distinctive mark for the purposes of this Ordinance.

1 and 2 Geo. 6,
c. 22.

13. (1) In order for a trade mark to be registrable in Part B of the register it must be capable, in relation to the goods in respect of which it is registered or proposed to be registered, of distinguishing goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connexion subsists, either generally or, where the trade mark is registered or proposed to be registered subject to limitations, in relation to use within the extent of the registration.

Capability of
distinguishing
requisite for
registration in
Part B.

(2) In determining whether a trade mark is capable of distinguishing as aforesaid the Court or the Registrar may have regard to the extent to which—

- (a) the trade mark is inherently capable of distinguishing as aforesaid; and
- (b) by reason of the use of the trade mark or of any other circumstances, the trade mark is in fact capable of distinguishing as aforesaid:

Provided that any mark which has been registered in Part B of the register kept in the United Kingdom under the Trade Marks Act, 1938, shall be deemed to be capable of distinguishing goods within the meaning of sub-section (1) of this section.

1 and 2 Geo. 6,
c. 22.

(3) A trade mark may be registered in Part B notwithstanding any registration in Part A in the name of the same proprietor of the same trade mark or any part or parts thereof.

14. (1) It shall not be lawful to register as a trade mark or part of a trade mark any matter the use of which would, by reason of its being likely to deceive or cause confusion or otherwise, be disentitled to protection in a court of justice, or would be contrary to law or morality, or any scandalous design.

Prohibition of
registration of
deceptive, etc.,
matter.

(2) No trade mark shall be registered in respect of particular goods or classes of goods set forth in the Second Schedule to this Ordinance unless such trade mark has been and is registered in the United Kingdom in respect of such goods or classes of goods.

15. (1) Subject to the provisions of sub-section (2) of this section, no trade mark shall be registered in respect of any goods or description of goods that is identical with a trade mark belonging to a different proprietor and already on the register in respect of the same goods or description of goods, or that so nearly resembles such a trade mark as to be likely to deceive or cause confusion.

Prohibition of
registration of
identical and
resembling
trade marks.

(2) In case of honest concurrent use, or of other special circumstances which in the opinion of the Court or the Registrar make it proper so to do, the Court or the Registrar may permit the registration of trade marks that are identical or nearly resemble each other in respect of the same goods or

description of goods by more than one proprietor subject to such conditions and limitations, if any, as the Court or the Registrar, as the case may be, may think it right to impose.

(3) Where separate applications are made by different persons to be registered as proprietors respectively of trade marks that are identical or nearly resemble each other, in respect of the same goods or description of goods, the Registrar may refuse to register any of them until their rights have been determined by the Court, or have been settled by agreement in a manner approved by him or on an appeal by the Court, as the case may be.

Registration in Part A to be conclusive as to validity after seven years.

16. (1) In all legal proceedings relating to a trade mark registered in Part A of the register (including applications under section 35 of this Ordinance) the original registration in Part A of the register of the trade mark shall, after the expiration of seven years from the date of that registration, be taken to be valid in all respects, unless—

- (a) that registration was obtained by fraud, or
- (b) the trade mark offends against the provisions of section 14 of this Ordinance.

(2) Nothing in sub-section (1) of section 8 of this Ordinance shall be construed as making applicable to a trade mark, as being a trade mark registered in Part B of the register, the foregoing provisions of this section relating to a trade mark registered in Part A of the register.

Registration subject to disclaimer.

17. If a trade mark—

- (a) contains any part not separately registered by the proprietor as a trade mark; or
- (b) contains matter common to the trade or otherwise of a non-distinctive character,

the Registrar or the Court, in deciding whether the trade mark shall be entered or shall remain on the register, may require, as a condition of its being on the register—

- (i) that the proprietor shall disclaim any right to the exclusive use of any part of the trade mark, or to the exclusive use of all or any portion of any such matter as aforesaid, to the exclusive use of which the tribunal holds him not to be entitled; or
- (ii) that the proprietor shall make such other disclaimer as the tribunal may consider necessary for the purpose of defining his rights under the registration:

Provided that no disclaimer on the register shall affect any rights of the proprietor of a trade mark except such as arise out of the registration of the trade mark in respect of which the disclaimer is made.

Words used as name or description of an article or substance.

18. (1) The registration of a trade mark shall not be deemed to have become invalid by reason only of any use, after the date of the registration, of a word or words which the trade mark contains, or of which it consists, as the name or description of an article or substance:

Provided that, if it is proved either—

- (a) that there is a well-known and established use of the word or words as the name or description of the article or substance by a person or persons carrying on a trade therein, not being use in relation to goods connected in the course of trade with the proprietor or a registered user of the trade mark or (in the case of a certification trade mark) goods certified by the proprietor; or

(b) that the article or substance was formerly manufactured under a patent, that a period of two years or more after the cesser of the patent has elapsed, and that the word or words is or are the only practicable name or description of the article or substance,

the provisions of the next succeeding sub-section shall have effect.

(2) Where the facts mentioned in paragraph (a) or (b) of the proviso to the foregoing sub-section are proved with respect to any word or words, then—

(a) if the trade mark consists solely of that word or those words, the registration of the trade mark, so far as regards registration in respect of the article or substance in question or of any goods of the same description, shall be deemed for the purposes of section 35 of this Ordinance to be an entry wrongly remaining on the register;

(b) if the trade mark contains that word or those words and other matter, the Court or the Registrar, in deciding whether the trade mark shall remain on the register, so far as regards registration in respect of the article or substance in question and of any goods of the same description, may in case of a decision in favour of its remaining on the register require as a condition thereof that the proprietor shall disclaim any right to the exclusive use in relation to that article or substance and any goods of the same description of that word or those words, so, however, that no disclaimer on the register shall affect any rights of the proprietor of a trade mark except such as arise out of the registration of the trade mark in respect of which the disclaimer is made; and

(c) for the purposes of any other legal proceedings relating to the trade mark—

(i) if the trade mark consists solely of that word or those words, all rights of the proprietor, whether under the common law or by registration, to the exclusive use of the trade mark in relation to the article or substance in question or to any goods of the same description; or

(ii) if the trade mark contains that word or those words and other matter, all such rights of the proprietor to the exclusive use of that word or those words in such relation as aforesaid,

shall be deemed to have ceased on the date at which the use mentioned in paragraph (a) of the proviso to the foregoing sub-section first became well known and established, or at the expiration of the period of two years mentioned in paragraph (b) of that proviso.

(3) No word which is the commonly used and accepted name of any single chemical element or single chemical compound, as distinguished from a mixture, shall be registered as a trade mark in respect of a chemical substance or preparation, and any such registration in force at the commencement of this Ordinance or thereafter shall, notwithstanding anything in section 16 of this Ordinance, be deemed for the purposes of section 35 of this Ordinance to be an entry made in the register without sufficient cause, or an entry wrongly remaining on the register, as the circumstances may require:

Provided that the foregoing provisions of this sub-section shall not have effect in relation to a word which is used to denote only a brand or make of the element or compound as made by the proprietor or a registered user of the trade mark, as distinguished from the element or compound as made by others, and in association with a suitable name or description open to the public use.

Effect of
limitation as
to colour,
and of
absence
thereof.

19. A trade mark may be limited in whole or in part to one or more specified colours, and in any such case the fact that it is so limited shall be taken into consideration by the Court or the Registrar having to decide on the distinctive character of the trade mark. 10

If and so far as a trade mark is registered without limitation of colour, it shall be deemed to be registered for all colours. 15

PART III—PROCEDURE FOR, AND DURATION OF, REGISTRATION

Application
for registration.

20. (1) Any person claiming to be the proprietor of a trade mark used or proposed to be used by him who is desirous of registering it must apply in writing to the Registrar in the prescribed manner for registration either in Part A or in Part B of the register. 20

(2) Subject to the provisions of this Ordinance, the Registrar may refuse the application, or may accept it absolutely or subject to such amendments, modifications, conditions or limitations, if any, as he may think right. 25

(3) In the case of an application for registration of a trade mark (other than a certification trade mark) in Part A of the register, the Registrar may, if the applicant is willing, instead of refusing the application, treat it as an application for registration in Part B and deal with the application accordingly. 30

(4) In the case of a refusal or conditional acceptance, the Registrar shall, if required by the applicant, state in writing the grounds of his decision and the materials used by him in arriving thereat, and the decision shall be subject to appeal to the Court. 35

(5) An appeal under this section shall be made in the prescribed manner, and on the appeal the Court shall, if required, hear the applicant and the Registrar, and shall make an order determining whether, and subject to what amendments, modifications, conditions or limitations, if any, the application is to be accepted. 40

(6) Appeals under this section shall be heard on the materials stated as aforesaid by the Registrar, and no further grounds of objection to the acceptance of the application shall be allowed to be taken by the Registrar, other than those so stated as aforesaid by him, except by leave of the Court. Where any further grounds of objection are taken, the applicant shall be entitled to withdraw his application without payment of costs on giving notice as prescribed. 50

(7) The Registrar or the Court, as the case may be, may at any time, whether before or after acceptance, correct any error in or in connexion with the application, or may permit the applicant to amend his application upon such terms as the Registrar or the Court, as the case may be, may think fit. 55

Opposition to
registration.

21. (1) When an application for registration of a trade mark has been accepted, whether absolutely or subject to conditions or limitations, the Registrar shall, as soon as may be after acceptance, cause the application as accepted to be advertised in the prescribed manner, and the advertisement shall set forth all conditions and limitations subject to which the application has been accepted: 60

Provided that the Registrar may cause an application to be advertised before acceptance if it is made under paragraph (e) of sub-section (1) of section 12 of this Ordinance, or in any other case where it appears to him that it is expedient by reason of any exceptional circumstances so to do, and where an application has been so advertised the Registrar may, if he thinks fit, advertise it again when it has been accepted but shall not be bound so to do.

(2) Any person may, within the prescribed time from the date of the advertisement of an application, give notice to the Registrar of opposition to the registration.

(3) The notice shall be given in writing in the prescribed manner, and shall include a statement of the grounds of opposition.

(4) The Registrar shall send a copy of the notice to the applicant, and within the prescribed time after receipt thereof the applicant shall send to the Registrar, in the prescribed manner, a counter-statement of the grounds on which he relies for his application, and, if he does not do so, he shall be deemed to have abandoned his application.

(5) If the applicant sends such a counter-statement as aforesaid, the Registrar shall furnish a copy thereof to the person giving notice of opposition, and shall, after hearing the parties, if so required, and considering the evidence, decide whether, and subject to what conditions or limitations, if any, registration is to be permitted.

(6) The decision of the Registrar shall be subject to appeal to the Court.

(7) An appeal under this section shall be made in the prescribed manner, and on the appeal the Court shall, if required, hear the parties and the Registrar, and shall make an order determining whether, and subject to what conditions or limitations, if any, registration is to be permitted.

(8) On the hearing of an appeal under this section any party may, either in the manner prescribed or by special leave of the Court, bring forward further material for the consideration of the Court.

(9) On an appeal under this section no further grounds of objection to the registration of a trade mark shall be allowed to be taken by the opponent or the Registrar, other than those so stated as aforesaid by the opponent, except by leave of the Court. Where any further grounds of objection are taken, the applicant shall be entitled to withdraw his application without payment of the costs of the opponent on giving notice as prescribed.

(10) On an appeal under this section the Court may, after hearing the Registrar, permit the trade mark proposed to be registered to be modified in any manner not substantially affecting the identity thereof, but in any such case the trade mark as so modified shall be advertised in the prescribed manner before being registered.

(11) If a person giving notice of opposition or an applicant sending a counter-statement after receipt of a copy of such a notice, or an appellant, neither resides nor carries on business in the Colony, the Court or the Registrar may require him to give security for costs of the proceedings before the Court or the Registrar relative to the opposition or to the appeal, as the case may be, and in default of such security being duly given may treat the opposition or application, or the appeal, as the case may be, as abandoned.

Registration.

22. (1) When an application for registration of a trade mark in Part A or in Part B of the register has been accepted, and either—

(a) the application has not been opposed and the time for notice of opposition has expired; or 5

(b) the application has been opposed and the opposition has been decided in favour of the applicant,

the Registrar shall, unless the application has been accepted in error, register the trade mark in Part A or Part B, as the case may be, and the trade mark, when registered, shall be 10 registered as of the date of the application for registration, and that date shall be deemed for the purposes of this Ordinance to be the date of registration:

Provided that the foregoing provisions of this sub-section, relating to the date as of which a trade mark shall be registered 15 and to the date to be deemed to be the date of registration, shall, as respects a trade mark registered under this Ordinance with the benefit of any enactment relating to international or inter-imperial arrangements, have effect subject to the provisions of that enactment. 20

(2) On the registration of a trade mark the Registrar shall issue to the applicant a certificate in the prescribed form of the registration thereof under the hand and seal of the Registrar.

(3) Where registration of a trade mark is not completed 25 within twelve months from the date of the application by reason of default on the part of the applicant, the Registrar may, after giving notice of the non-completion to the applicant in writing in the prescribed manner, treat the application as abandoned unless it is completed within the time specified 30 in that behalf in the notice.

Duration and renewal of registration.

23. (1) The registration of a trade mark shall be for a period of seven years, but may be renewed from time to time in accordance with the provisions of this section:

Provided that, in relation to a registration as of a date 35 before the appointed day, this sub-section shall have effect with the substitution of a period of fourteen years for the said period of seven years.

(2) The Registrar shall, on application made by the registered proprietor of a trade mark in the prescribed manner 40 and within the prescribed period, renew the registration of the trade mark for a period of fourteen years from the date of expiration of the original registration or of the last renewal of registration, as the case may be, which date is in this section referred to as "the expiration of the last registration". 45

(3) At the prescribed time before the expiration of the last registration of a trade mark, the Registrar shall send notice in the prescribed manner to the registered proprietor of the date of expiration and the conditions as to payment of fees and otherwise upon which a renewal of registration may 50 be obtained, and, if at the expiration of the time prescribed in that behalf those conditions have not been duly complied with, the Registrar may remove the trade mark from the register, subject to such conditions, if any, as to its restoration to the register as may be prescribed. 55

(4) Where a trade mark has been removed from the register for non-payment of the fee for renewal, it shall, nevertheless, for the purpose of any application for the registration of a trade mark during one year next after the date of the removal, be deemed to be a trade mark that is already on the 60 register:

Provided that the foregoing provisions of this sub-section shall not have effect where the Court or the Registrar is satisfied either—

- 5 (a) that there has been no bona fide trade use of the trade mark that has been removed during the two years immediately preceding its removal; or
- (b) that no deception or confusion would be likely to arise from the use of the trade mark that is the subject of the application for registration by reason of any
10 previous use of the trade mark that has been removed.

24. (1) Where the proprietor of a trade mark claims to be entitled to the exclusive use of any part thereof separately, he may apply to register the whole and any such part as
15 separate trade marks.

Registration of parts of trade marks and of trade marks as a series.

Each such separate trade mark must satisfy all the conditions of an independent trade mark and shall, subject to the provisions of sub-section (3) of section 26 and sub-section (2) of section 33 of this Ordinance, have all the incidents of
20 an independent trade mark.

(2) Where a person claiming to be the proprietor of several trade marks, in respect of the same goods or description of goods, which, while resembling each other in the material particulars thereof, yet differ in respect of—

- 25 (a) statements of the goods in relation to which they are respectively used or proposed to be used; or
- (b) statements of number, price, quality or names of places; or
- (c) other matter of a non-distinctive character which does
30 not substantially affect the identity of the trade mark; or
- (d) colour,

seeks to register those trade marks, they may be registered as a series in one registration.

35 PART IV—ASSIGNMENT AND TRANSMISSION

25. (1) Notwithstanding any rule of law or equity to the contrary, a registered trade mark shall be and shall be deemed always to have been, assignable and transmissible either in connexion with the goodwill of a business or not.

Powers of, and restrictions on, assignment and transmission.

40 (2) A registered trade mark shall be, and shall be deemed always to have been, assignable and transmissible in respect either of all the goods in respect of which it is registered, or was registered, as the case may be, or of some (but not all) of those goods.

45 (3) The provisions of the two foregoing sub-sections shall have effect in the case of an unregistered trade mark used in relation to any goods as they have effect in the case of a registered trade mark registered in respect of any goods, if at the time of the assignment or transmission of the un-
50 registered trade mark it is or was used in the same business as a registered trade mark, and if it is or was assigned or transmitted at the same time and to the same person as that registered trade mark and in respect of goods all of which are goods in relation to which the unregistered trade mark is
55 or was used in that business and in respect of which that registered trade mark is or was assigned or transmitted.

(4) Notwithstanding anything in the foregoing sub-sections, a trade mark shall not be, or be deemed to have been, assignable or transmissible in a case in which as a result of an
60 assignment or transmission there would in the circumstances subsist, or have subsisted, whether under the common law or

by registration, exclusive rights in more than one of the persons concerned to the use, in relation to the same goods or description of goods, of trade marks nearly resembling each other or of identical trade marks, if, having regard to the similarity of the goods and of the trade marks, the use of the trade marks in exercise of those rights would be, or have been, likely to deceive or cause confusion: 5

Provided that, where a trade mark is, or has been, assigned or transmitted in such a case as aforesaid, the assignment or transmission shall not be deemed to be, or to have been, invalid under this sub-section if the exclusive rights subsisting as a result thereof in the persons concerned respectively are, or were, having regard to limitations imposed thereon, such as not to be exercisable by two or more of those persons in relation to goods to be sold, or otherwise traded in, within the Colony (otherwise than for export therefrom) or in relation to goods to be exported to the same market outside the Colony. 15

(5) The proprietor of a registered trade mark who proposes to assign it in respect of any goods in respect of which it is registered may submit to the Registrar in the prescribed manner a statement of case setting out the circumstances, and the Registrar may issue to him a certificate stating whether, having regard to the similarity of the goods and of the trade marks referred to in the case, the proposed assignment of the first-mentioned trade mark would or would not be invalid under the last foregoing sub-section, and a certificate so issued shall subject to the provisions of this section as to appeal and unless it is shown that the certificate was obtained by fraud or misrepresentation, be conclusive as to the validity or invalidity under the last foregoing sub-section of the assignment in so far as such validity or invalidity depends upon the facts set out in the case, but, as regards a certificate in favour of validity, only if application for the registration under section 28 of this Ordinance of the title of the person becoming entitled is made within six months from the date on which the certificate is issued. 25 30 35

(6) Notwithstanding anything in sub-sections (1) to (3) of this section, a trade mark shall not, on or after the appointed day, be assignable or transmissible in a case in which as a result of an assignment or transmission thereof there would in the circumstances subsist, whether under the common law or by registration, an exclusive right in one of the persons concerned to the use of the trade mark limited to use in relation to goods to be sold or otherwise traded in, in a place or places in the Colony and an exclusive right in another of those persons to the use of a trade mark nearly resembling the first-mentioned trade mark or of an identical trade mark in relation to the same goods or description of goods limited to use in relation to goods to be sold, or otherwise traded in, in another place or other places in the Colony: 40 45 50

Provided that, on application in the prescribed manner by the proprietor of a trade mark who proposes to assign it, or of a person who claims that a trade mark has been transmitted to him or to a predecessor in title of his on or after the appointed day, in any such case, the Registrar, if he is satisfied that in all the circumstances the use of the trade marks in exercise of the said rights would not be contrary to the public interest, may approve the assignment or transmission, and an assignment or transmission so approved shall not be deemed to be, or to have been, invalid under this sub-section or under sub-section (4) of this section, so, however, that in the case of a registered trade mark this provision shall not have effect unless application for the registration under section 28 of this Ordinance of the title of the person becoming entitled is made 55 60

within six months from the date on which the approval is given or, in the case of transmission, was made before that date.

(7) Where an assignment in respect of any goods of a trade mark that is at the time of the assignment used in a business in those goods is made, on or after the appointed day, otherwise than in connexion with the goodwill of that business, the assignment shall not take effect until the following requirements have been satisfied, that is to say, the assignee must, not later than the expiration of six months from the date on which the assignment is made or within such extended period, if any, as the Registrar may allow, apply to him for directions with respect to the advertisement of the assignment, and must advertise it in such form and manner and within such period as the Registrar may direct.

(8) Any decision of the Registrar under this section shall be subject to appeal to the Court.

26. (1) Trade marks that are registered as, or that are deemed by virtue of this Ordinance to be associated trade marks shall be assignable and transmissible only as a whole and not separately, but they shall for all other purposes be deemed to have been registered as separate trade marks.

Certain trade marks to be associated so as to be assignable and transmissible as a whole only.

(2) Where a trade mark that is registered, or is the subject of an application for registration, in respect of any goods is identical with another trade mark that is registered, or is the subject of an application for registration, in the name of the same proprietor in respect of the same goods or description of goods, or so nearly resembles it as to be likely to deceive or cause confusion if used by a person other than the proprietor, the Registrar may at any time require that the trade marks shall be entered on the register as associated trade marks.

Any decision of the Registrar under this sub-section shall be subject to appeal to the Court.

(3) Where a trade mark and any part or parts thereof are, by virtue of sub-section (1) of section 24 of this Ordinance, registered as separate trade marks in the name of the same proprietor, they shall be deemed to be, and shall be registered as, associated trade marks.

(4) All trade marks that are, by virtue of sub-section (2) of section 24 of this Ordinance, registered as a series in one registration shall be deemed to be, and shall be registered as, associated trade marks.

(5) On application made in the prescribed manner by the registered proprietor of two or more trade marks registered as associated trade marks, the Registrar may dissolve the association as respects any of them if he is satisfied that there would be no likelihood of deception or confusion being caused if that trade mark were used by another person in relation to any of the goods in respect of which it is registered, and may amend the register accordingly.

Any decision of the Registrar under this sub-section shall be subject to appeal to the Court.

27. Subject to the provisions of this Ordinance, the person for the time being entered in the register as proprietor of a trade mark shall, subject to any rights appearing from the register to be vested in any other person, have power to assign the trade mark, and to give effectual receipts for any consideration for an assignment thereof.

Power of registered proprietor to assign and give receipts.

28. (1) Where a person becomes entitled by assignment or transmission to a registered trade mark, he shall make application to the Registrar to register his title, and the Registrar shall, on receipt of the application and on proof of

Registration of assignments and transmissions.

title to his satisfaction, register him as the proprietor of the trade mark in respect of the goods in respect of which the assignment or transmission has effect, and shall cause particulars of the assignment or transmission to be entered on the register.

5

(2) Any decision of the Registrar under this section shall be subject to appeal to the Court.

(3) Except for the purposes of an appeal under this section or of an application under section 35 of this Ordinance, a document or instrument in respect of which no entry has been made in the register in accordance with the provisions of sub-section (1) of this section shall not be admitted in evidence in any court in proof of the title to a trade mark unless the Court otherwise directs.

PART V—USE AND NON-USE

15

Removal
from register
and imposition
of limitations
on ground of
non-use.

29. (1) Subject to the provisions of the next succeeding section, a registered trade mark may be taken off the register in respect of any of the goods in respect of which it is registered on application by any person aggrieved to the Court or, at the option of the applicant and subject to the provisions of section 53 of this Ordinance to the Registrar, on the ground either—

(a) that the trade mark was registered without any bona fide intention on the part of the applicant for registration that it should be used in relation to those goods by him, and that there has in fact been no bona fide use of the trade mark in relation to those goods by any proprietor thereof for the time being up to the date one month before the date of the application; or

30

(b) that up to the date one month before the date of the application a continuous period of five years or longer elapsed during which the trade mark was a registered trade mark and during which there was no bona fide use thereof in relation to those goods by any proprietor thereof for the time being:

Provided that (except where the applicant has been permitted under sub-section (2) of section 15 of this Ordinance to register an identical or nearly resembling trade mark in respect of the goods in question or where the tribunal is of opinion that he might properly be permitted so to register such a trade mark) the tribunal may refuse an application made under paragraph (a) or (b) of this sub-section in relation to any goods, if it is shown that there has been, before the relevant date or during the relevant period, as the case may be, bona fide use of the trade mark by any proprietor thereof for the time being in relation to goods of the same description, being goods in respect of which the trade mark is registered.

(2) Where in relation to any goods in respect of which a trade mark is registered—

50

(a) the matters referred to in paragraph (b) of the foregoing sub-section are shown so far as regards non-use of the trade mark in relation to goods to be sold, or otherwise traded in, in a particular place in the Colony (otherwise than for export from the Colony), or in relation to goods to be exported to a particular market outside the Colony; and

55

(b) a person has been permitted under sub-section (2) of section 15 of this Ordinance to register an identical or nearly resembling trade mark in respect of those goods under a registration extending to use in relation to goods to be sold, or otherwise traded in, in that place (otherwise than for export from the Colony), or in relation to goods to be exported to that market, or the Court or the Registrar is of opinion that he might properly be permitted so to register such a trade mark,

on application by that person to the Court, or, at the option of the applicant and subject to the provisions of section 53 of this Ordinance, to the Registrar, the Court or the Registrar, as the case may be, may impose on the registration of the first-mentioned trade mark such limitations as the Court or the Registrar thinks proper for securing that that registration shall cease to extend to such use as last aforesaid.

(3) An applicant shall not be entitled to rely for the purposes of paragraph (b) of sub-section (1), or for the purposes of sub-section (2), of this section on any non-use of a trade mark that is shown to have been due to special circumstances in the trade and not to any intention not to use or to abandon the trade mark in relation to the goods to which the application relates.

30. (1) Where a trade mark consisting of an invented word or invented words has become so well known as respects any goods in respect of which it is registered and in relation to which it has been used that the use thereof in relation to other goods would be likely to be taken as indicating a connexion in the course of trade between those goods and a person entitled to use the trade mark in relation to the first-mentioned goods, then, notwithstanding that the proprietor registered in respect of the first-mentioned goods does not use or propose to use the trade mark in relation to those other goods and notwithstanding anything in the last foregoing section, the trade mark may, on the application in the prescribed manner of the proprietor registered in respect of the first-mentioned goods, be registered in his name in respect of those other goods as a defensive trade mark and, while so registered, shall not be liable to be taken off the register in respect of those goods under the last foregoing section.

Defensive
registration
of well known
trade marks.

(2) The registered proprietor of a trade mark may apply for the registration thereof in respect of any goods as a defensive trade mark notwithstanding that it is already registered in his name in respect of those goods otherwise than as a defensive trade mark, or may apply for the registration thereof in respect of any goods otherwise than as a defensive trade mark notwithstanding that it is already registered in his name in respect of those goods as a defensive trade mark, in lieu in each case of the existing registration.

(3) A trade mark registered as a defensive trade mark and that trade mark as otherwise registered in the name of the same proprietor shall, notwithstanding that the the respective registrations are in respect of different goods, be deemed to be, and shall be registered as, associated trade marks.

(4) On application by any person aggrieved to the Court or, at the option of the applicant and subject to the provisions of section 53 of this Ordinance, to the Registrar, the registration of a trade mark as a defensive trade mark may be cancelled on the ground that the requirements of sub-section (1) of this section are no longer satisfied in respect of any goods in respect of which the trade mark is registered in the name of the same proprietor otherwise than as a defensive trade

mark, or may be cancelled as respects any goods in respect of which it is registered as a defensive trade mark on the ground that there is no longer any likelihood that the use of the trade mark in relation to those goods would be taken as giving the indication mentioned in sub-section (1) of this section. 5

(5) The Registrar may at any time cancel the registration as a defensive trade mark of a trade mark of which there is no longer any registration in the name of the same proprietor otherwise than as a defensive trade mark. 10

(6) Except as otherwise expressly provided in this section, the provisions of this Ordinance shall apply in respect of the registration of trade marks as defensive trade marks and of trade marks so registered as they apply in other cases.

Registered
users.

31. (1) Subject to the provisions of this section, a person 15 other than the proprietor of a trade mark may be registered as a registered user thereof in respect of all or any of the goods in respect of which it is registered (otherwise than as a defensive trade mark) and either with or without conditions or restrictions. 20

The use of a trade mark by a registered user thereof in relation to goods with which he is connected in the course of trade and in respect of which for the time being the trade mark remains registered and he is registered as a registered user, being use such as to comply with any conditions or restrictions 25 to which his registration is subject, is in this Ordinance referred to as the "permitted use" thereof.

(2) The permitted use of a trade mark shall be deemed to be use by the proprietor thereof, and shall be deemed not to be use by a person other than the proprietor, for the 30 purposes of section 29 of this Ordinance and for any other purpose for which such use is material under this Ordinance or at common law.

(3) Subject to any agreement subsisting between the parties, a registered user of a trade mark shall be entitled to 35 call upon the proprietor thereof to take proceedings to prevent infringement thereof, and, if the proprietor refuses or neglects to do so within two months after being so called upon, the registered user may institute proceedings for infringement in his own name, as if he were the proprietor, making the 40 proprietor a defendant.

A proprietor so added as defendant shall not be liable for any costs unless he enters an appearance and takes part in the proceedings.

(4) Where it is proposed that a person should be registered 45 as a registered user of a trade mark, the proprietor and the proposed registered user must apply in writing to the Registrar in the prescribed manner and must furnish him with a statutory declaration made by the proprietor, or by some person authorized to act on his behalf and approved by the 50 Registrar—

(a) giving particulars of the relationship, existing or proposed, between the proprietor and the proposed registered user, including particulars showing the degree of control by the proprietor over the permitted 55 use which their relationship will confer and whether it is a term of their relationship that the proposed registered user shall be the sole registered user or that there shall be any other restriction as to persons for whose registration as registered users application 60 may be made;

- (b) stating the goods in respect of which registration is proposed;
- (c) stating any conditions or restrictions proposed with respect to the characteristics of the goods, to the mode or place of permitted use, or to any other matter; and
- (d) stating whether the permitted use is to be for a period or without limit of period, and, if for a period, the duration thereof.

10 and with such further documents, information or evidence as may be required under the rules or by the Registrar.

(5) When the requirements of the last foregoing subsection have been complied with, if the Registrar, after considering the information furnished to him under that subsection, is satisfied that in all the circumstances the use of the trade mark in relation to the proposed goods or any of them by the proposed registered user subject to any conditions or restrictions which the Registrar thinks proper would not be contrary to the public interest, the Registrar may register the proposed registered user as a registered user in respect of the goods as to which he is so satisfied subject as aforesaid.

(6) The Registrar shall refuse an application under the foregoing provisions of this section if it appears to him that the grant thereof would tend to facilitate trafficking in a trade mark.

(7) The Registrar shall, if so required by an applicant, take steps for securing that information given for the purposes of an application under the foregoing provisions of this section (other than matter entered in the register) is not disclosed to rivals in trade.

(8) Without prejudice to the provisions of section 35 of this Ordinance, the registration of a person as a registered user—

(a) may be varied by the Registrar as regards the goods in respect of which, or any conditions or restrictions subject to which, it has effect, on the application in writing in the prescribed manner of the registered proprietor of the trade mark to which the registration relates;

(b) may be cancelled by the Registrar on the application in writing in the prescribed manner of the registered proprietor or of the registered user or of any other registered user of the trade mark; or

(c) may be cancelled by the Registrar on the application in writing in the prescribed manner of any person on any of the following grounds, that is to say—

(i) that the registered user has used the trade mark otherwise than by way of the permitted use, or in such a way as to cause, or to be likely to cause, deception or confusion;

(ii) that the proprietor or the registered user misrepresented, or failed to disclose, some fact material to the application for the registration, or that the circumstances have materially changed since the date of the registration;

(iii) that the registration ought not to have been effected having regard to rights vested in the applicant by virtue of a contract in the performance of which he is interested.

(9) Provision shall be made by the rules for the notification of the registration of a person as a registered user to any other registered user of the trade mark, and for the notification of an application under the last foregoing sub-section to the registered proprietor and each registered user (not being the applicant) of the trade mark, and for giving to the applicant on such an application, and to all persons to whom such an application is notified and who intervene in the proceedings in accordance with the rules, an opportunity of being heard. 5

(10) The Registrar may at any time cancel the registration of a person as a registered user of a trade mark in respect of any goods in respect of which the trade mark is no longer registered. 10

(11) Any decision of the Registrar under the foregoing provisions of this section shall be subject to appeal to the Court. 15

(12) Nothing in this section shall confer on a registered user of a trade mark any assignable or transmissible right to the use thereof.

Proposed use
of trade
mark by
corporation to
be constituted,
etc.

32. (1) No application for the registration of a trade mark in respect of any goods shall be refused, nor shall permission for such registration be withheld, on the ground only that it appears that the applicant does not use or propose to use the trade mark— 20

(a) if the Court or the Registrar is satisfied that a body corporate is about to be constituted, and that the applicant intends to assign the trade mark to the corporation with a view to the use thereof in relation to those goods by the corporation; or

(b) if the application is accompanied by an application for the registration of a person as a registered user of the trade mark, and the Court or the Registrar is satisfied that the proprietor intends it to be used by that person in relation to those goods and the Court or the Registrar is also satisfied that that person will be registered as a registered user thereof immediately after the registration of the trade mark. 30 35

(2) The provisions of section 29 of this Ordinance shall have effect, in relation to a trade mark registered under the power conferred by the foregoing sub-section, as if for the reference, in paragraph (a) of sub-section (1) of that section, to intention on the part of an applicant for registration that a trade mark should be used by him there were substituted a reference to intention on his part that it should be used by the corporation or registered user concerned. 40 45

(3) The Court or the Registrar may, as a condition of the exercise of the power conferred by sub-section (1) of this section in favour of an applicant who relies on intention to assign to a corporation as aforesaid, require him to give security for the costs of any proceedings before the Court or the Registrar relative to any opposition or appeal, and in default of such security being duly given may treat the application as abandoned. 50

(4) Where a trade mark is registered in respect of any goods under the power conferred by sub-section (1) of this section in the name of an applicant who relies on intention to assign to a corporation as aforesaid, then, unless within such period as may be prescribed, or within such further period not exceeding six months as the Registrar may on application being made to him in the prescribed manner allow, the corporation has been registered as the proprietor of the trade mark in respect of those goods, the registration shall cease to have effect in respect thereof at the expiration of that period, and the Registrar shall amend the register accordingly. 60

33. (1) Where under the provisions of this Ordinance use of a registered trade mark is required to be proved for any purpose, the Court or the Registrar may, if and so far as the Court or the Registrar thinks right, accept use of an associated registered trade mark, or of the trade mark with additions or alterations not substantially affecting its identity, as an equivalent for the use required to be proved.

Use of one of associated or substantially identical trade marks equivalent to use of another.

(2) The use of the whole of a registered trade mark shall for the purposes of this Ordinance be deemed to be also a use of any registered trade mark, being a part thereof, registered in the name of the same proprietor by virtue of sub-section (1) of section 24 of this Ordinance.

34. The application in the Colony of a trade mark to goods to be exported from the Colony, and any other act done in the Colony in relation to goods to be so exported which, if done in relation to goods to be sold or otherwise traded in within the Colony, would constitute use of a trade mark therein, shall be deemed to constitute use of the trade mark in relation to those goods for any purpose for which such use is material under this Ordinance or at common law.

Use of trade mark for export trade.

PART VI—RECTIFICATION AND CORRECTION OF REGISTER

35. (1) Any person aggrieved by the non-insertion in or omission from the register of an entry, or by any entry made in the register without sufficient cause, or by any entry wrongly remaining on the register, or by any error or defect in any entry in the register, may apply in the prescribed manner to the Court or, at the option of the applicant and subject to the provisions of section 53 of this Ordinance, to the Registrar, and the Court or the Registrar may make such order for making, expunging or varying the entry as the Court or the Registrar, as the case may be, may think fit.

General power to rectify entries in register.

(2) The Court or the Registrar may in any proceeding under this section decide any question that it may be necessary or expedient to decide in connexion with the rectification of the register.

(3) In case of fraud in the registration, assignment or transmission of a registered trade mark, the Registrar may himself apply to the Court under the provisions of this section.

(4) Any order of the Court rectifying the register shall direct that notice of the rectification shall be served in the prescribed manner on the Registrar, and the Registrar shall on receipt of the notice rectify the register accordingly.

(5) The power to rectify the register conferred by this section shall include power to remove a registration in Part A of the register to Part B.

36. On application by any person aggrieved to the Court, or, at the option of the applicant and subject to the provisions of section 53 of this Ordinance, to the Registrar, or on application by the Registrar to the Court, the Court or the Registrar may make such order as the Court or the Registrar may think fit for expunging or varying the registration of a trade mark on the ground of any contravention of, or failure to observe, a condition entered on the register in relation thereto.

Power to expunge or vary registration for breach of condition.

37. (1) The Registrar may, on request made in the prescribed manner by the registered proprietor—

Correction of register.

(a) correct any error in the name, address or description of the registered proprietor of a trade mark;

(b) enter any change in the name, address or description of the person who is registered as proprietor of a trade mark;

(c) cancel the entry of a trade mark on the register;

(d) strike out any goods or classes of goods from those in respect of which a trade mark is registered; or

(e) enter a disclaimer or memorandum relating to a trade mark which does not in any way extend the rights given by the existing registration of the trade mark. 5

(2) The Registrar may, on request made in the prescribed manner by a registered user of a trade mark, correct any error, or enter any change, in the name, address or description of the registered user. 10

(3) Any decision of the Registrar under this section shall be subject to appeal to the Court.

Alteration of
registered
trade mark.

38. (1) The registered proprietor of a trade mark may apply in the prescribed manner to the Registrar for leave to add to or alter the trade mark in any manner not substantially affecting the identity thereof, and the Registrar may refuse leave or may grant it on such terms and subject to such limitations as he may think fit. 15

(2) The Registrar may cause an application under this section to be advertised in the prescribed manner in any case where it appears to him that it is expedient so to do, and where he does so, if within the prescribed time from the date of the advertisement any person gives notice to the Registrar in the prescribed manner of opposition to the application, the Registrar shall, after hearing the parties if so required, decide the matter. 20 25

(3) Any decision of the Registrar under this section shall be subject to appeal to the Court.

(4) Where leave as aforesaid is granted, the trade mark as altered shall be advertised in the prescribed manner, unless it has already been advertised, in the form to which it has been altered, in an advertisement under sub-section (2) of this section. 30

Adaptation of
entries in
register to
amended or
substituted
classification of
goods.

39. (1) The Minister may from time to time make such rules, prescribe such forms and generally do such things as he thinks expedient, for empowering the Registrar to amend the register, whether by making or expunging or varying entries therein, so far as may be requisite for the purpose of adapting the designation therein of the goods or classes of goods in respect of which trade marks are registered to any amended or substituted classification that may be prescribed. 35 40

(2) The Registrar shall not, in exercise of any power conferred on him for the purpose aforesaid, make any amendment of the register that would have the effect of adding any goods or classes of goods to those in respect of which a trade mark is registered (whether in one or more classes) immediately before the amendment is to be made, or of ante-dating the registration of a trade mark in respect of any goods: 45

Provided that this sub-section shall not have effect in relation to goods as to which the Registrar is satisfied that compliance with this sub-section in relation thereto would involve undue complexity and that the addition or ante-dating, as the case may be, would not affect any substantial quantity of goods and would not substantially prejudice the rights of any person. 50 55

(3) A proposal for the amendment of the register for the purpose aforesaid shall be notified to the registered proprietor of the trade mark affected, shall be subject to appeal by the registered proprietor to the Court, shall be advertised with any modifications, and may be opposed before the Registrar by

any person aggrieved on the ground that the proposed amendment contravenes the provisions of the last foregoing subsection, and the decision of the Registrar on any such opposition shall be subject to appeal to the Court.

- 5 (4) All rules made under the provisions of sub-section (1) of this section shall be laid before the Legislative Council as soon as may be after they are made, and if a resolution of the Council is passed within the next subsequent forty days on which the Council has sat after any such rule is laid that the
10 rule be annulled, it shall thenceforth be void, but without prejudice to anything previously done thereunder or to the making of any new rule.

PART VII—CERTIFICATION TRADE MARKS

40. (1) A mark adapted in relation to any goods to distinguish in the course of trade goods certified by any person in
15 respect of origin, material, mode of manufacture, quality, accuracy or other characteristic, from goods not so certified shall be registrable as a certification trade mark in Part A of the register in respect of those goods in the name, as proprietor
20 thereof, of that person:

Certification
trade marks.

Provided that a mark shall not be so registrable in the name of a person who carries on a trade in goods of the kind certified.

- (2) In determining whether a mark is adapted to distinguish as aforesaid, the Court or the Registrar may have
25 regard to the extent to which—

- (a) the mark is inherently adapted to distinguish as aforesaid in relation to the goods in question; and
30 (b) by reason of the use of the mark or of any other circumstances, the mark is in fact adapted to distinguish as aforesaid in relation to the goods in question.

- (3) Subject to the provisions of sub-sections (4), (5) and (6) of this section, and of sections 10 and 11 of this Ordinance, the
35 registration of a person as proprietor of a certification trade mark in respect of any goods shall, if valid, give to that person the exclusive right to the use of the trade mark in relation to those goods, and, without prejudice to the generality of the foregoing words, that right shall be deemed to be infringed by
40 any person who, not being the proprietor of the trade mark or a person authorized by him under the regulations in that behalf using it in accordance therewith, uses a mark identical with it or so nearly resembling it as to be likely to deceive or cause confusion, in the course of trade, in relation to any
45 goods in respect of which it is registered, and in such manner as to render the use of the mark likely to be taken either—

- (a) as being use as a trade mark; or
(b) in a case in which the use is use upon the goods or in physical relation thereto or in an advertising
50 circular or other advertisement issued to the public, as importing a reference to some person having the right either as proprietor or by his authorization under the relevant regulations to use the trade mark or to goods certified by the proprietor.

- 55 (4) The right to the use of a certification trade mark given by registration as aforesaid shall be subject to any conditions or limitations entered on the register, and shall not be deemed to be infringed by the use of any such mark as aforesaid in any mode, in relation to goods to be sold or otherwise traded
60 in any place, in relation to goods to be exported, to any market, or in any other circumstances, to which, having regard to any such limitations, the registration does not extend.